

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN PERU

Complete Community Opposition How-To

This guide uses the Peruvian terms and bodies you'll actually run into — the SEIA and its EIA, SENACE certification, citizen participation and prior consultation, OEFA oversight, the amparo and acción popular, the Defensoría del Pueblo — and explains each in plain words the first time. The rules governing SENACE and the mining ministry shift, so always check the current position.

INTRODUCTION & FRAMEWORK

In the fertile San Lorenzo valley of Piura, in northern Peru, the town of **Tambogrande** sits amid mango and lime groves that feed much of the country. When a Canadian company, Manhattan Minerals, won concessions to dig a kilometre-wide open-pit gold mine — under the town itself, requiring the relocation of roughly half its sixteen thousand residents — the community refused to accept that the decision was theirs to make and not ours. The municipality used its own legal power to call a **referendum (consulta vecinal)**, and on **2 June 2002**, with national and international observers watching, the people of Tambogrande voted — **overwhelmingly, around 98 per cent — no**. The government insisted the vote wasn't legally binding and pushed the company's environmental study forward; the community boycotted it. And in **December 2003, the state informed Manhattan Minerals that it had failed to meet the financial requirements to hold the contract** — effectively killing the mine. A farming town had beaten a foreign mining company, and Tambogrande became a model, echoed soon after at Esquel in Argentina, of a community's right to decide.

The farming town of Tambogrande, which beat a foreign gold mine with a 98%-no referendum, drew on a specific toolkit — though the referendum that built its legitimacy was a municipal *consulta vecinal*, not the levers below. The **SEIA** environmental-assessment system requires projects with significant impacts to obtain **environmental certification** before they begin, with **citizen participation** guaranteed. For projects on the lands of Indigenous or native peoples, a further, powerful right applies: **prior consultation (consulta previa)** under Law 29785 and **ILO Convention 169**. And Peru's constitutional courts have repeatedly protected these rights through the **amparo**, a fast constitutional action — including striking at mining concessions granted without the consultation the law required. But these tools have grave limits, and this guide states them plainly. Peru's economy leans hard on mining, oil, gas, and big infrastructure; the state promotes investment; participation is often run as a formality; **consulta previa is a right but not a veto** — the State makes the final call; enforcement is uneven; and, gravest of all, **communities defending land and water have faced real danger and death**, so your people's safety comes first. A clean, permanent stop usually comes not from a single legal mechanism but from combining the legal levers with mass legitimacy and endurance, as Tambogrande did.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Peruvian project needs its **environmental certification** (through **SENACE** or a sector ministry), resting on an EIA with **citizen participation**; on Indigenous lands it needs **prior consultation**; it must respect the constitutional rights an **amparo** can defend; and it needs public acceptance. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If it's on Indigenous or native land and consultation was skipped, that's a powerful lever** — the amparo has struck at concessions granted without the required consulta previa.
- **If the certification is defective or participation was a sham, that's a real ground** — and forces a redo or annulment.
- **If it's a national-priority mine or project the State backs, an outright stop is hard** — aim honestly at delay, the annulment of a defective certification, binding conditions, OEFA sanctions, and forcing genuine consultation, and — as Tambogrande showed — build overwhelming public legitimacy. And protect your people, because this is dangerous ground.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — participation, consultation, the amparo, OEFA — and **run every front at once**, safely: the documents, the participation, the courts, the movement, the press. That's how Tambogrande was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **environmental certification** under the **SEIA**, issued by **SENACE** (the national certification body, for the largest projects) or a **sector ministry** (mining and energy through MINEM). **OEFA** oversees compliance and can sanction. On Indigenous lands, the **prior-consultation** process runs through the culture ministry and the relevant sector. Municipalities have some competencies — as Tambogrande used to call its referendum. Know which body holds your decision, and aim there.

How a Project Moves — and Where You Jump In

The EIA and citizen participation. The developer prepares the environmental impact study; there's **citizen participation** — public hearings, workshops — while it's assessed. *Your opening* — and it arms every later step: take part, put your objections on the record, and insist the participation is genuine, not a formality.

Prior consultation (on Indigenous lands). Where a measure affects Indigenous or native peoples, **consulta previa** is required before it's approved. *Your opening*: a project that skipped or botched it is on weak legal ground — even though consultation is not a veto.

The certification. SENACE or the ministry certifies the project. *Your opening*: a defective certification can be annulled, or frozen by an amparo.

Construction and operation. *Your opening*: breaches, reported to OEFA, which can sanction and halt.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure, and a foreign miner has investors to answer to (Tambogrande's mine died on the company's finances). **What it still needs** — the certification not final or under challenge, the consultation not done, financing not closed: whatever's missing is the soft spot. **Who's paying** — banks and investors with their own environmental and social standards.

Who's Supposed to Be Watching

Each is an ally or an arena. **SENACE and the sector ministries** issue the certification and can be pressed. **OEFA** oversees compliance and can sanction and halt. The **constitutional courts** hear the **amparo** on rights, and the ordinary courts the **acción popular** against unlawful rules. The **Defensoría del Pueblo** (Ombudsman) investigates and mediates, and monitors social conflicts and defenders. And Peru's **community organisations, its rondas and federations, and its press** are the forces that reach furthest — the combination that carried Tambogrande.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether Indigenous consultation is engaged, whether the certification or participation was flawed, how united and legitimate the community's stand is, and how set the State is on the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Citizen participation / objections	15–35%	during assessment	low	On record; conditions or a redo
Amparo (consultation / rights)	25–50%	months–2 yr	low	Fast freeze; concession or certification struck
Annulling a defective certification	25–50%	1–3 yr	low–mod	Certification set aside
Consulta previa (skipped/botched)	25–50%	varies	low	Project stalled pending genuine consultation
OEFA complaint (enforcement)	20–45%	months	low	Sanctions; works halted
Referendum / mass legitimacy (Tambogrande-style)	30–55%	varies	low–mod	Political defeat of the project
Everything together (Indigenous rights, world watching)	35–60%	1–4 yr	low–mod	Stopped, stalled, delayed, changed
Everything together (national-priority, State-backed)	15–40%	1–4 yr	low–mod	Delayed, conditioned, exposed

The levers that move the needle most are the **amparo** (especially on consultation), the **annulment of a defective certification**, and — Tambogrande's lesson — **mass legitimacy**, backed by OEFA and the movement. Tambogrande shows the ceiling (a foreign mine defeated). The honest floor is a State-backed national-priority project, where a win often looks like delay, a struck certification, conditions, or forced consultation.

On cost and safety: participating, documenting, and organising are cheap; the amparo is accessible; and OEFA complaints are free. But this is dangerous ground — defenders have been killed. Protect the vulnerable, document safely, and route risk through lawyers, the Defensoría del Pueblo, and the press.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this certification, this flaw, this right — is strong. Answer five questions in writing, safely.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the boundaries and lay them over Indigenous and native lands, water and rivers, glaciers and wetlands (bofedales) and headwaters, farmland, protected areas. **Indigenous lands (triggering consultation) and water are your sharpest levers**, so this map is your most important document — Tambogrande turned on farmland and water.
- 3. What stage is it at, and what's the next deadline?** Is the EIA in participation? Is consultation due? Has SENACE or the ministry certified it (opening the amparo and the annulment)? These openings are time-bound.
- 4. What does it still need that it lacks?** A certification not final, consultation not done, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbouring communities, the Indigenous or native federation, the rondas, the municipality. Tambogrande united a whole valley.

What this looks like in real life. A community learns a mine is planned on its water and farmland, near native land, with a token hearing and no consultation. The five questions yield: a foreign company behind it; a site on farmland and water, near Indigenous land (the levers); an EIA in participation with certification pending; a project still needing that certification; and a coalition of the valley's communities. That's the Tambogrande pattern — build mass legitimacy, demand consultation, and get the amparo ready.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers — safely.

Layer one: the paper trail. Get the documents the decision rests on — the environmental impact study, the certification and its conditions, the participation and consultation records, the water and land studies. Peru's access-to-information rights let you demand what isn't public. Then read the study hard for flaws — an understated impact on water or land, an ignored alternative, a consultation skipped where it was required, a participation that never genuinely happened.

Layer two: the ground truth. Dated, located photographs and video of the site, the water, the farmland, the wildlife — baseline images before any damage most of all — and, carefully, the testimony of affected residents.

Layer three: the map of rights and water. Lay the project over Indigenous and native lands, water and headwaters, and protected areas, so each lever is visible. Walking into the courts or before OEFA with the study, the certification, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The environmental study, the certification and conditions, the participation and consultation records, the water and land studies** — from SENACE, the ministry, and OEFA; force out the rest

under the access-to-information rules (8A).

- **Indigenous and community records** — from the federation and the community's own structures.
- **Ownership and financing** — company and investor records.
- **The rights-and-water map** — Indigenous and native lands, water and headwaters, and protected areas, laid over the site.
- **Dated site evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Tambogrande's whole valley voting as one is what beat the mine. Build your coalition in four moves — and safely.

Start with a tight core. The neighbours most affected, the people who know the land and water, a few tireless organisers, and respected local figures — and, where they exist, the *rondas campesinas*.

Build mass legitimacy. Tambogrande's lesson is that overwhelming, visible community will — a referendum, a united valley — is a political fact governments and companies struggle to ignore. Widen the circle across the whole affected area, and hold meetings where people see the evidence.

Centre Indigenous leadership where it applies. Where native lands and consultation are engaged, the Indigenous or native peoples hold the strongest legal ground; build the campaign around supporting that leadership, at their direction.

Bring in the allies and lawyers — early, and safely. Reach Peru's environmental and Indigenous-rights organisations and lawyers, and the scientists who can dismantle a weak study. The *amparo* is accessible enough that a supported community can bring a strong case.

Build to last, and safely. Peruvian fights run for years and can turn deadly. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial, emotional, and physical risks. Take threats seriously — defenders have been killed — protect the vulnerable, and route danger through lawyers, the Defensoría del Pueblo, and the press.

STEP 4: LEGAL CHALLENGES, CONSULTATION & THE AMPARO

Law is one of Peru's sharpest levers, because the constitutional courts have protected consultation and environmental rights — but pair it with legitimacy and endurance.

Participate First — It Builds the Record

Everything downstream is stronger if you took part in the citizen participation and put your objections on the record. The courts and OEFA review the certification on that record, so your objections are the raw material of the challenge.

Prior Consultation and the Amparo — the Sharpest Rights Lever

On Indigenous or native lands, **prior consultation (consulta previa)** under Law 29785 and ILO Convention 169 must happen before a measure affecting the people is approved. It is **not a veto** — the State decides in the end — but a project that **skipped or botched it** is on weak legal ground, and Peru's constitutional courts have used the **amparo** — a fast constitutional action to stop a rights violation — to **strike at concessions**

granted without the required consultation. The amparo is your quickest tool to freeze a rights violation; use it where consultation was denied or a fundamental right is threatened.

Annulling the Certification, OEFA, and the Acción Popular

Beyond the amparo, a **defective environmental certification** — built on a flawed study or a sham participation — can be challenged and annulled. **OEFA** oversees compliance and can **sanction and halt** a project that breaches its conditions; a complaint to OEFA is free. And the **acción popular** challenges unlawful regulations. Match the tool to the flaw: the amparo for a rights violation, annulment for a defective certification, OEFA for breaches, the acción popular for an unlawful rule.

The Honest Limits

Straight talk: the amparo and consultation are real levers, but consultation is not a veto, litigation is slow, the State backs national-priority projects hard, participation is often a formality, and defenders face real danger. So use the strong tools — participation, consultation, the amparo, annulment, OEFA — but pair them with mass legitimacy, the movement, and the press, protect your people, and count a struck certification, forced consultation, OEFA sanctions, delay, and exposure as wins alongside an outright stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A right becomes a fast freeze. Not "we don't want the mine" but *"this affects our native land and consultation was never held — a rights violation we ask the court to stop by amparo."*

A document becomes an annulment. *"The certification rests on a study that ignored our water and a participation that never happened — it should be set aside."*

Water becomes the strongest claim. *"This destroys the headwaters and farmland our valley lives from."*

The harm becomes a public story. *"The land and water our families have farmed for generations — for a mine we were never truly asked about."*

Match it to the venue: the objections to SENACE; the consultation violation to the amparo; the defective certification to annulment; the breaches to OEFA; the human and the water to the press.

STEP 5: MEDIA STRATEGY

In Peru, national and international attention is a real lever — Tambogrande's referendum, watched by observers, made the community's will impossible to dismiss — and, where defenders are at risk, a protection. A press, community networks, and international allies make the media front central, handled with care.

Lead with people and place, not procedure. Not "the certification was defective" but "the land and water our families have farmed for generations — for a mine we were never truly asked about." Use your strongest material: dated photographs, the map of the project over the water and land, the community's stand, and — carefully — human testimony.

Work several audiences at once. Local and national press build political pressure; the environmental and Indigenous movements amplify; international media and human-rights networks reach the company's investors and help protect people. Make it easy: captioned photos, accurate summaries, a map, strong

voices.

Two hard rules. Accuracy above all — one exaggeration can be used against you. And protect people — weigh every public act, and let the community decide what is said and by whom.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies; and protect anyone at risk.

8A — Access-to-information request (to SENACE / the ministry / OEFA).

Subject: Solicitud de información — [proyecto].

"Under the access-to-information rules, we, residents of [place], request the environmental impact study, the certification and its conditions, and the participation and consultation records for [project] at [location]. [Contact.]"

8B — Objection in the citizen participation.

Subject: Observaciones — participación ciudadana de [proyecto].

"We, residents of [place], oppose the certification of [project]: [the study understates the impact on our water / land; consultation was required and skipped; participation never reached us]. We ask that certification be refused. [Attach evidence.]"

8C — Amparo (to a lawyer).

Subject: Acción de amparo — [proyecto].

"We instruct you to file an amparo because [project] threatens our rights: [consultation on our native land was never held / a fundamental right is threatened]. We ask the court to suspend the act. [Attach the certification/concession and our evidence.]"

8D — Complaint to OEFA (enforcement).

Subject: Denuncia ante OEFA — [proyecto].

"We report that [project] [operates in breach of its conditions / threatens serious harm]: [specifics]. We ask OEFA to investigate, sanction, and halt it. [Attach evidence.]"

8E — To the Defensoría del Pueblo.

Subject: Queja — [proyecto] en [lugar].

"We ask you to investigate [project], which [skipped required consultation / threatens our water and rights], and [any threats to community members]. [Attach evidence.]"

8F — To a financier or investor.

Subject: Environmental, rights, and legal risk in [project].

"We understand your institution may be financing [project] at [location], which [proceeds without required consultation / faces active legal challenge]. We ask you to weigh this against your own environmental and social standards. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [land / water / valley] from [project].

"For generations the people of [place] have farmed [the valley / the land] at [location]. Now [project], by [company], threatens it — and we were never truly asked. We can provide photographs, documents, a map and — carefully — interviews. [Contact.]"

8H — Rallying the community (safely).

Subject: We can protect our land and water — here's how.

"[Project] threatens [our land / water / valley]. At Tambogrande, a farming town voted almost unanimously against a gold mine — and the mine died. With participation, consultation, the amparo, mass legitimacy, and the movement behind us, we have a real chance. Please join us — carefully, protecting one another. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

1. **Nail down the project and its footprint, and look for the levers.** Native lands (triggering consultation) and water are your sharpest.
2. **Take part in the citizen participation and object (8B); on native land, demand consultation.**
3. **Request the documents (8A), and read the study for flaws and a skipped consultation.**
4. **Photograph everything, with dates and places, safely.**
5. **File an amparo for a rights or consultation violation (8C), and complain to OEFA for breaches (8D).**
6. **Build mass legitimacy, go public, and involve the Defensoría (8E/8H) — safely.** Tambogrande won on an overwhelming community vote.

Even lean, those six use your rights, build the record, hit the strongest legal ground, and protect your people.

WHEN THE SYSTEM IS TILTED

Peru's tools are real, but the field is often tilted, and you must plan for it.

When it's a national-priority project. The State backs mining and infrastructure hard. Don't fold: use the amparo, consultation, and OEFA, build overwhelming legitimacy, keep the movement alive, and make the State's backing of a flawed project a public cost.

When consultation is treated as a formality — or denied. Consulta previa is a right, and skipping or botching it is a ground the amparo can strike. But it is not a veto, so pair it with legitimacy and the other

levers.

When participation is a sham. A token hearing is not participation. Document the sham — it's a ground to annul a certification.

When defenders are targeted. This is the gravest tilt — defenders have been killed. Take threats seriously, protect the vulnerable, work through lawyers and the Defensoría, and use national and international attention as protection.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Peru has serious, documented problems with the capture of permits and concessions, so this matters.

How to spot it. Certifications against the evidence; a study written for the proponent; consultation or participation engineered to exclude; concessions steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **Contraloría** examines public money. The **Fiscalía** (including its environmental and anti-corruption units) handles graft and environmental crime. The **Defensoría del Pueblo** investigates and mediates. The **courts** can annul a tainted act, and **OEFA** can sanction. And Peru's **investigative press** has exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Don't make public accusations you can't back; they can invite retaliation. Route serious evidence to the Contraloría, the Fiscalía, and trusted journalists, protect insiders and witnesses, and pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the consultation and water levers aims it; organising builds the muscle and the legitimacy; the amparo and OEFA press the case; the media raises the cost and protects your people. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any native land or water; take part and object; demand consultation where it applies; request the records; photograph the baseline; get a lawyer and build your coalition — safely.

In the thick of it (months–years): file an amparo for a consultation or rights violation; challenge a defective certification; complain to OEFA; build mass legitimacy; involve the Defensoría; open the media front — carefully.

The long haul (years): carry the case through the courts; keep the movement and the attention alive; hold the line for a struck certification, forced consultation, OEFA sanctions, delay, or an outright stop — and keep your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in Peru can be done — a farming town voted almost unanimously against a foreign gold mine, and the mine died. Hold both truths. Peru's tools are real: an environmental-certification

system with participation; prior consultation on Indigenous lands; a fast amparo the constitutional courts have used to strike concessions granted without consultation; OEFA enforcement; and the Defensoría del Pueblo. And the constraints are real: an economy leaning on extraction, a State that backs national-priority projects, consultation that is a right but not a veto, formalistic participation, uneven enforcement, and grave danger to defenders.

Here's the discipline that wins. Find the native-land and water levers, and the flaw — the skipped consultation, the sham participation — and pry loose the record. Take part and object, and demand genuine consultation where it applies. File an amparo for a rights or consultation violation, challenge a defective certification, and use OEFA for breaches. Build overwhelming community legitimacy as Tambogrande did, carry the story to the nation and the world, and protect your people above all. Count a struck certification, forced consultation, OEFA sanctions, delay, and exposure as wins alongside an outright stop. That's what Tambogrande did — a united valley, a referendum, and endurance together. So can you — safely.